

VP-15

Interim Application, Supporting Affidavit and Exhibit Notes

Petitioner's urgent preservation and status-quo application | 20 October 2025

Entity	VertexPay Technologies Private Limited
Status	Participant Case File
Benchmark note	Synthetic record. Names and identifiers are fictional; statutory and regulatory sources are real.

Interim Application

The Petitioner seeks interim orders restraining transfer or encumbrance under the Bad Leaver call, further capital actions outside ordinary course, destruction or alteration of records, and implementation of new bank mandates except ordinary payments. He seeks a neutral custodian of native Board, email, chat, cloud and accounting data and limited inspection through counsel.

Urgency and balance

- The bad-leaver notice purports to cover 1,417,500 shares at INR 0.10 and states completion may occur without further consent.
- Minutes and financial documents show later creation/modification dates; native evidence may determine authenticity.
- A complete restraint on business could harm payroll and customers; the Petitioner proposes ordinary-course and emergency-payment carve-outs.
- Damages may not adequately cure loss of voting control or evidentiary destruction, while a preservation order imposes limited prejudice.

General affidavit verifying petition (NCLT-6 style)

I, Aarav Mehta, son of Rajiv Mehta, aged 37 years, residing at Bandra West, Mumbai, solemnly affirm that I am the Petitioner. Statements in paragraphs 1-18, 22, 25 and 31 concerning my acts and communications are true to my knowledge; statements concerning Company records, investor communications and calculations are based on documents shown to me and believed true; legal submissions are based on advice.

Verification: verified at Mumbai on 20 October 2025 that the above identifies the source of knowledge and belief. /s/ Aarav Mehta. Attestation block: 'Before me' with stamp of Notary S. K. Purohit. The scan does not show the notarial register serial number.

Electronic record certificate (incomplete draft)

Aarav certifies that email renders and WhatsApp text were exported from an iPhone 15 Pro and an Outlook offline cache under his lawful control. The draft lists IMEI as 'to be inserted', states SHA-256 'see hash report', and no hash report is attached. It does not identify the Company's server, investor mailbox or delivery-system records. The record tests compliance with section 63 of the Bharatiya Sakshya Adhiniyam, 2023 but is deliberately incomplete.

Exhibit A - File properties report

File	Claimed document date	Created / modified	Author / observation
Minutes_12Sep_signed.pdf	15 Sep 2025	Created 5 Oct 2025 21:44	KM Office; source reconstructed.docx
CFO_Report_10Sep.pdf	10 Sep 2025	Modified 12 Sep 2025 07:55	KMenon; no revision log
Nimbus_Notice_22Aug.pdf	22 Aug 2025	Created 26 Aug 2025 08:58	Nimbus Legal; text references 25 Aug
Aarav_reps_FINAL.pdf	23 Sep 2025	Created 23 Sep 2025 18:02	AMacbook; no signature certificate
EGM_minutes.pdf	30 Sep 2025	Created 30 Oct 2025	Priya Sethi; within 30 days if correctly entered

Exhibit B - Bank mandate anomaly

The bank mandate form removing Aarav and adding Kavya is dated 11 September 2025 and stamped received at 10:14 on 12 September. The Board resolution authorising it is dated 12 September at 8:30. Nisha's signature appears in blue ink; Kavya's is a scan. The bank email says changes were activated 13 September subject to certified minutes.

Exhibit C - Hash and custody schedule

Evidence	Custodian	Hash / custody status
Founder PST	Aarav counsel	Container hash recorded; individual message hashes absent
Investor M365 export	Meridian counsel	No administrator affidavit; privilege reservations
WhatsApp text	Nisha phone export	No media; messages marked deleted; device not imaged
Board video	Company platform account	Not produced; Company says auto-deleted after 30 days
Bank CSV	CFO	Exported 9 Oct; statement PDF supplied by bank separately

Evidence	Custodian	Hash / custody status
Forensic image	GrayPeak Forensics	Acquisition hash asserted, report and image withheld

Proposed interim order

Until further order, parties shall preserve and not alter relevant records; no transfer under the call option or further security issue shall occur; ordinary-course payments under INR 2.5 million and payroll/statutory payments may continue; payments above threshold require Nisha plus CFO and notice to an independent observer; counsel may inspect specified non-privileged corporate records in a secure room.